SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 4531 of 2022 (YEAR: 2010)

CORAM: G.S. SINGHVI, A.K. GANGULY

Arun Kumar Agrawal
... Appellant(s) / Petitioner(s)
Versus
National Insurance Co. Ltd.
... Respondent(s)

Acts Referred:	Motor Vehicles Act, 1988
Sections:	Section 166 Motor Vehicles Act, Section 168 Motor Vehicles Act

JUDICIAL HEADNOTE & SUMMARY

Affirmed that the contribution of a deceased homemaker is invaluable and must be properly recognized in motor accident awards rather than dismissed on bare technicalities.

RATIO DECIDENDI

The Court held that: Affirmed that the contribution of a deceased homemaker is invaluable and must be properly recognized in motor accident awards rather than dismissed on bare technicalities. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Arun Kumar Agrawal v. National Insurance Co. Ltd. (Civil Appeal No. 4531 of 2022) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Motor Vehicles Act, 1988, particularly Section 166 Motor Vehicles Act, Section 168 Motor Vehicles Act. Affirmed that the contribution of a deceased homemaker is invaluable and must be properly recognized in motor accident awards rather than dismissed on bare technicalities.

OPERATIVE ORDER

ORDER: Decided